
Quoters Copy

Issuing Office:

BLM NIFC

This solicitation can be downloaded at <https://www.sam.gov>.**Quotes Are Solicited For:**

King Mountain Raptor Nest Survey

Solicitation: 140L3725Q0075

IMPORTANT – NOTICE TO ALL PROSPECTIVE QUOTERS

Quotes shall be emailed to the Contracting Specialist, at Daniel Rosales drosales@blm.gov by 1000 hours, Mountain Daylight Time, 05/29/2025.

As part of its quote, the quoter shall complete/submit the following:

- (a) SF 1449, Blocks 17a, 30a-30c;
- (b) Fill in the appropriate information requested in Section B.1, Schedule of Items;
- (c) Provide your responses to Sections E.3 Instructions to Offerors; and,
- (d) Contact information for an individual with the authority to bind.
- (e) Questions can be submitted via email until 05/22/2025 @ 1000 Mountain Daylight Time. Answers to questions will be submitted to SAM.gov as an amendment.
- (f) No formal site visit is scheduled. Additionally, interested vendors may reach out to the COR Jacob Pollert jpollert@blm.gov if you would like to formally visit the site with the Government representative. Vendors may visit the site at their convenience.

Quotes that arrive after the prescribed time for receipt of quotes will be considered late and treated in accordance with FAR 52.212-1, Instructions to Offerors-Commercial Items.

It is the Quoter's responsibility to monitor the following website for any changes to the RFQ: <https://www.sam.gov>.

Quotes submitted in response to the solicitation shall honor the offer for 60 days.

This solicitation neither commits the Government to pay any cost incurred in the submission of the quote or in making necessary studies or designs for preparing the offer, nor to contract for services or supplies. Any cost incurred in anticipation of a contract shall be at the Quoter's own risk.

Quoters may contact the Contracting Officer, Daniel Rosales at drosales@blm.gov.

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 0044012603		PAGE OF 1 48													
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 140L3725Q0075		6. SOLICITATION ISSUE DATE 05/14/2025												
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Daniel Rosales			b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/LOCAL TIME 05/29/2025 1000 MD												
9. ISSUED BY CODE LFA BLM FA-NTL INTRAGCY FIRE CTR(FA250) 3833 S. DEVELOPMENT AVE. BOISE ID 83705				10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ UNRESTRICTED OR ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A)				☒ SET ASIDE: 100.00 % FOR: NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 541620 SIZE STANDARD: \$19											
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ☐ ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING													
15. DELIVER TO CODE 0011276305 BLM-CO COLORADO RIVER VALLEY FO 2300 RIVER FRONTAGE ROAD SILT CO 81652		16. ADMINISTERED BY CODE LFA BLM FA NTL INTRAGCY FIRE (FA250) 3833 S. DEVELOPMENT AVE. BOISE ID 83705		14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)															
17a. CONTRACTOR/ OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE															
TELEPHONE NO.				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM															
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER																			
<table border="1" style="width:100%; border-collapse: collapse;"> <thead> <tr> <th style="width:10%;">19. ITEM NO.</th> <th style="width:60%;">20. SCHEDULE OF SUPPLIES/SERVICES</th> <th style="width:10%;">21. QUANTITY</th> <th style="width:5%;">22. UNIT</th> <th style="width:15%;">23. UNIT PRICE</th> <th style="width:10%;">24. AMOUNT</th> </tr> </thead> <tbody> <tr> <td>00010</td> <td> Period of Performance: 07/01/2025 to 06/30/2026 King Mountain Raptor Survey Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2026 Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary) </td> <td></td> <td></td> <td></td> <td></td> </tr> </tbody> </table>								19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT	00010	Period of Performance: 07/01/2025 to 06/30/2026 King Mountain Raptor Survey Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2026 Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)				
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25. ACCOUNTING AND APPROPRIATION DATA					26. TOTAL AWARD AMOUNT (For Government Use Only)														
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.																			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.																			
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.					☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:														
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)															
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED													
				Daniel Rosales															

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00020	King Mountain Raptor Survey (Option Line Item) Anticipated Exercise Date 06/30/2026 Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2027 Period of Performance: 07/01/2026 to 06/30/2027				
00030	King Mountain Raptor Survey (Option Line Item) Anticipated Exercise Date 06/30/2027 Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2028 Period of Performance: 07/01/2027 to 06/30/2028				
00040	King Mountain Raptor Survey (Option Line Item) Anticipated Exercise Date 06/30/2028 Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2029 Period of Performance: 07/01/2028 to 06/30/2029				
00050	King Mountain Raptor Survey (Option Line Item) Anticipated Exercise Date 06/30/2029 Product/Service Code: B534 Product/Service Description: SPECIAL STUDIES/ANALYSIS- WILDLIFE Delivery: 06/30/2030 Period of Performance: 07/01/2029 to 06/30/2030				

SECTION B – SCHEDULE OF ITEMS/DESCRIPTION/SPECIFICATIONS**B.1 SCHEDULE OF ITEMS/PRICE SCHEDULE**

<i>Year</i>	<i>Item</i>	<i>Supplies/Services</i>	<i>Qty</i>	<i>Unit of Issue</i>	<i>Unit Price</i>	<i>Total Price</i>
<i>Base Year</i>	<i>0010</i>	<i>Raptor Nesting Survey</i>	<i>900</i>	<i>ACRE</i>	\$	\$
<i>Option Year 1</i>	<i>0020</i>	<i>Raptor Nesting Survey</i>	<i>900</i>	<i>ACRE</i>	\$	\$
<i>Option Year 2</i>	<i>0030</i>	<i>Raptor Nesting Survey</i>	<i>900</i>	<i>ACRE</i>	\$	\$
<i>Option Year 3</i>	<i>0040</i>	<i>Raptor Nesting Survey</i>	<i>900</i>	<i>ACRE</i>	\$	\$
<i>Option Year 4</i>	<i>0050</i>	<i>Raptor Nesting Survey</i>	<i>900</i>	<i>ACRE</i>	\$	\$
					<i>Total FFP</i>	\$

King Mountain Fuels and Forest Health Project – Raptor Surveys

BLM Colorado River Valley Field Office

Project Inspector: Nicholas Jaramillo, 970-876-9026

Contracting Officer's Representative: Jake Pollert

Statement Of Work

Proposed Project: This is a sizeable, multi-phase forest treatment project on King Mountain in the northern part of CRVFO. The project will be implemented in a way to improve defensibility in case of a large wildfire, to improve forest health, as well as to improve forest age structure and plant diversity to benefit wildlife and improve livestock distribution. For this treatment, the use of machinery and the harvest of forest products has the potential to impact raptors that may be nesting in the project area during implementation. To implement the project during the raptor nesting season (February 15th through September 15th), raptor nest surveys must be completed to avoid impacts to raptor nesting, particularly Northern Goshawks.

The project area is located in Routt County, south of Toponas, Colorado in T1N, R84W, Sections 31-33; T1S, R84W, Sections 6-8, 7-9, 16-18, and 19 (Figure 1).

The Contracting Officer's Representative (COR) is Jake Pollert and the Project Inspector is Nicholas Jaramillo.

Access to the project area is described beginning from Toponas, CO: From the intersection of State Highway 131 and Routt County Road 5A (CR5A), continue west on CR5A approximately 3-miles to the intersection of King Mountain Cabin Road (right at the fork). Continue down this road to a locked gate with BLM parking and signage. Access through the gate will be provided to the contractor, and motorized use of the administrative routes within the SRMA will be authorized. It should be noted that downed timber can, and frequently does, create obstacles to motorized travel, and each vehicle should carry a chainsaw and a long chain or strap to move logs that may fall in behind and prevent egress. Cell phone service is not available in the project area and radio communication as well as satellite personal safety devices such as inReach, Spot, or Zoleo are highly recommended.

Proposed Raptor Nest Survey. The total survey area is approximately 8,100 acres and is based on a ½ mile buffer of the proposed project, limited to BLM lands (map attached, shapefiles available on request). This project will be implemented in phases, and raptor surveys will be conducted ideally one, but no more than two, nesting seasons prior for full coverage of each phase. The survey is expected to begin at the northern end of the project area and continue southward as the project progresses. Adjustment to the annual survey area may be necessary due to weather, snow conditions, access available to forestry crews or equipment, or other factors. The specific start point will be agreed upon prior to initiation of raptor nest surveys. The contractor will conduct raptor nest surveys following the protocol summarized in the contract requirements that follow.

In the base year approximately 900 acres will be surveyed in the northern portion of the project area as coordinated with the BLM wildlife biologist. Up to four option years of 900 acres surveys may be exercised at the governments discretion based on funding and continued need for surveys in the area.

Contract Requirements:

- The selected consultant will provide contact information for the individual supervising the project work (field inventories, planning, report preparation, data management, etc.) to the BLM prior to initiating surveys. This person will be the point of contact for the Project Inspector and will be responsible for all work done by the contractor's employees or subcontractors; for the accuracy of all data, documents, and related forms; and for fulfilling all terms and conditions associated with this contract.
- During any survey period, the selected consultant will provide a minimum of two experienced biologists qualified to conduct raptor nesting surveys in forested habitat using a combination of pedestrian transects with visual search and call playback methodology. A maximum of two inexperienced surveyors will be allowed to conduct surveys under the mentorship of each qualified biologist while maintaining radio communication with the mentors. Solo surveys or entry to the survey area are not allowed for safety reasons.
- All reporting and documentation will meet standards established by the BLM as presented in the Contract Requirements.

Field Inventory:

- The following environmental constraints will preclude intensive survey coverage as defined by the CRFVO Raptor Survey Protocol:
 - Unforested habitat that would not be subject to a forest treatment.
 - Areas with severe deadfall that prevents reasonable access for pedestrian transects and situations that are deemed unsafe to conduct pedestrian surveys. These areas should be searched to the extent possible with the use of binoculars or spotting scopes and call playback while ensuring surveyor safety.
- Accurate locations for nest sites are required. The type of GPS unit and accuracy will be included in the final report narrative. All UTM locations must be in Zone 13, NAD 83.
- The primary goal of the raptor survey is to locate and map all active and inactive woodland raptor nest sites in areas potentially influenced by the proposed forestry project. To accomplish this goal, all raptor nesting habitat within the provided Raptor Survey Polygon will be surveyed, which includes a ½ mile buffer on either side of the proposed treatment area.
- No production data or nest phenology information is required. The survey objective is to determine nest occupancy status and minimize duration and intensity of disturbance of active nests. The current occupancy status of all detected raptor nests must be confirmed. No climbing of nest tree, photographing of nest contents, or flagging/marking of nest sites or routes to nests is authorized or necessary for purposes of these surveys. If there is enough information to conclusively determine if a nest is occupied, the observer will record the necessary information and leave the area as soon as practicable to reduce potential impacts to adults and/or juvenile birds.
- If necessary, all nest structures will be viewed from multiple angles using binoculars or spotting scope. The observer will note the condition of the nest and will document signs of activity (e.g., one or both adult birds present, nestling or fledgling observed in the nest or in the nest area, fresh greenery in nest, down feathers on perimeter of nest or in branches adjacent to nest). In addition, behavioral observations that may be used to help determine nest status will be noted (e.g., adult in incubating posture on nest, aggressiveness of adults to observers, etc.).
- If possible, identify species or genus of raptors associated with unoccupied sites based on nest dimensions, material size, and relative position on the nest substrate. A thorough description of inactive sites is important, particularly if identification is uncertain.
- Broadcast survey techniques will be used in conjunction with pedestrian survey methods using the Kennedy-Stahlecker method:
 1. Broadcast transects will be spaced 250 meters from each other, and call playback stations will be separated by a distance of 200 meters along broadcast transects, with call stations on adjacent transects offset by 100 meters to ensure complete coverage.
 2. At each calling station, broadcast at 60 degrees from the transect line for 10 seconds, then listen and watch for 30 seconds. Repeat this sequence two more times, rotating 120 degrees from the last broadcast. Repeat the three-call sequence again. After the last sequence, move to the next station. Move (walk) between stations at an easy pace, listening and watching carefully for raptor calls and sign. Most time will be spent walking between stations, so it is important to be alert for raptors approaching, often silently, to investigate the surveyor. Do not survey from vehicles or use vehicles to move between stations. Moreover, off-road vehicle travel is not authorized for purposes of conducting raptor surveys. Use of two observers will likely enhance the probability of visual detections of woodland raptors; however, experienced surveyors may conduct transects and call playback individually.
 3. Effective coverage depends on the surveyor's ability to broadcast sound that can be detected throughout the entire survey area. Regardless of the type of equipment, the volume used in the field should be calibrated so that recordings are not audible to the human ear beyond 300 meters from the calling station but should be clearly audible at 200 meters. This

ensures adequate coverage while minimizing the chance that raptors respond beyond the auditory detection capabilities of the surveyor. To avoid misidentifying broadcasts of coworkers, simultaneous surveys should be conducted no closer than two transect widths apart.

4. If a raptor is heard or seen during the call-playback sequence, the surveyor will cease broadcasting and note the direction and distance of the detected raptor. The surveyor will then move in the direction of the call or visual observation and GPS the approximate location where the call or visual observation was detected. This area will be intensively surveyed for active and/or alternate nests. Generally, a circular area with a radius of 200 meters centered on the approximate location where the raptor was first seen or heard is intensively surveyed for nest structures. Single and multi-person crews should maintain a maximum distance of 20 meters between tracks when spiraling out from the anchor point.
5. Surveys should be conducted from June through August and can begin ½ hour before sunrise and cease ½ hour before sunset. Surveys should not be conducted in high winds (≥ 15 mph) or in heavy rain.
6. A high-quality recording of Northern Goshawk alarm calls or fledgling begging calls are recommended and preferred, based on timing during nesting season. A recording of a Great Horned Owl call may be used at the surveyor's discretion when it aids in detection and nest status determination.

Survey Products:

1. **Survey updates** are to be submitted to the Project Inspector by email on a bi-weekly basis during the completion of fieldwork. At a minimum, these updates will consist of a concise presentation of survey results and a description of the completed survey area. Spatial data of raptor nest locations with coordinates, species, and activity status (occupied, unoccupied, unknown) may be requested by BLM intermittently.
2. A **final report** and all associated shapefiles and photographs will be submitted to the Project Inspector by June 30, 2026. The written report should be in narrative format detailing the area surveyed, survey methods, equipment used, habitat conditions, raptor species observed, raptor nests discovered, nest occupancy status, representative photos of nests and nesting habitat, and topographic maps of survey results. The topographic maps provided with the written report will depict survey area polygons, nest locations identified by species and occupancy status, surface land management status, and existing transportation routes (1:24,000 and/or 1:100,000 scale preferred).
3. **ArcGIS shapefiles** in UTM Zone 13, NAD 83 of all discovered raptor nests, call stations, and surveyor routes must accompany the final report. The final raptor nest shapefile attributes will include, at a minimum, UTM Zone, UTM easting, UTM northing, survey date, observer name, raptor species, nest status, slope at nest, aspect at nest, nest tree species, height of nest in nest tree, total nest tree height, nest tree diameter (DBH), general description of nest stand, and any relevant additional comments concerning nest or territory status. Paper forms will not be required.
4. For each raptor nest, digital photographs of the nest stand, nest tree, and a closeup of the nest will be provided.

The final report and photographs may be submitted in electronic format to the CRVFO Project Inspector by email or via OneDrive. Spatial data and detailed nest information will be provided through a BLM provided geo-platform (FieldMaps or Survey123). Invoices may be submitted monthly, and upon acceptance of the final report a final invoice may be submitted. Questions concerning survey methodology or data and reporting requirements can be directed to the Project Inspector.

SECTION C - CONTRACT CLAUSES**C.1 CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIALS SERVICES. FAR 52.212-4 (NOV 2023)****Addendum to 52.212-4:****C.2 ADDENDUM TO FAR. FAR 52.212-4**

DIAR 1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:
 - (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the Contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government.
- (d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.
- (e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.
- (f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.
- (g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

--- End of Addendum to 52.212-4---

C.3 CONTRACT CLAUSES INCORPORATED BY REFERENCES. FAR 52.252-2 (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) Clauses: <https://www.acquisition.gov/browse/index/far> (FAR clauses begin with 52).

Department of the Interior Acquisition Regulation (DIAR) Clauses: <https://www.acquisition.gov/diar>.

52.204-9 Personal Identity Verification of Contractor Personnel (JAN 2011)

52.204-13 System for Award Management Maintenance (OCT 2018)

52.204-18 Commercial and Government Entity Code Maintenance (AUG 2020)

C.4 Contract Terms and Conditions Required to Implement Statutes or Executive Orders—Commercial Products and Commercial Services. FAR 52.212-5 (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

(4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

[XX] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved].

[] (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[XX] (9) 52.204-27 Prohibition on a ByteDance Covered Application (JUN 2023)

[] (10) 52.204-28, Federal *Acquisition* Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide *Acquisition* Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).

[] (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(ii) *Alternate* [] I (Dec 2023) of 52.204-30.

[XX](12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for *Debarment*, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

[] (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

[] (14) [Reserved]

[] (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a). [] (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

(17) [Reserve [] d]

[XX] (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644). [] (ii) Alternate I (Mar 2020) of 52.219-6.

[] (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644). [] (ii) Alternate I (Mar 2020) of 52.219-7.

[] (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

[] (21) (i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)). [] (ii) Alternate I (Nov 2016) of 52.219-9.

[] (iii) Alternate II (Nov 2016) of 52.219-9. [] (iv)

Alternate III (Jun 2020) of 52.219-9. [] (v) Alternate

IV (JAN 2025) of 52.219-9

[] (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)). [] (ii) Alternate I (Mar 2020) of 52.219-13.

[] (23) 52.219-14, Limitations on Subcontracting (OCT 2022) Limitations on Subcontracting (Oct 2022) (15 U.S.C. 637s).

[] (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

[] (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

[XX](26) (i) 52.219-28, Post award Small Business Program Representation (JAN 2025) (15 U.S.C. 632(a)(2)).

[] (ii) Alternate I (MAR 2020) of 52.219-28.

[] (27) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

[] (28) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)). [] (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C.

644(r)).

[] (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).

[XX] (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

[XX](32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025) (E.O.13126).

[XX] (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

[XX] (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

[] (ii) Alternate I (Feb 1999) of 52.222-26.

[] (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212). [] (ii) Alternate I (Jul 2014) of 52.222-35.

[XX] (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793). [] (ii) Alternate I (Jul 2014) of 52.222-36.

[] (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

[] (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

[XX] (39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

[] (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[] (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of *commercial products* or *commercial services* as prescribed in FAR [22.1803](#).)

[] (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (42) [52.223-11](#), *Ozone-Depleting Substances* and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[XX] (46) [52.223-23](#), Sustainable Products and Services (May 2024) (DEVIATION Feb 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671](#)).

[] (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a). [] (ii)

Alternate I (Jan 2017) of 52.224-3.

[] (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

[] (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29

(sections 4501-4732), Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (JAN 2025) of 52.225-3. [] (iv)

Alternate III (NOV 2023) of 52.225-3.

[] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

[] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

[] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

[] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

[XX] (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).

[] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

[] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[XX] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) (31 U.S.C. 3332).

[] (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

[] (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

[] (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

[] (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

[] (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

[] (ii) Alternate I (Apr 2003) of 52.247-64.

[] (iii) Alternate II (Nov 2021) of 52.247-64.

(a) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[XX] (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

[XX] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41

U.S.C. chapter 67).

This Statement is for Information Only: It is not a Wage Determination

Employee Class Monetary Wage-Fringe Benefits

[List as necessary]

[XX] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[XX] (7) **52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).**

[XX] (8) **52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).**

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(b) *Comptroller General Examination of Record.* The Contractor *shall* comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the *simplified acquisition threshold*, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the *United States*, or an authorized representative of the Comptroller General, *shall* have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor *shall* make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated *shall* be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of *claims* arising under or relating to this contract *shall* be made available until such appeals, litigation, or *claims* are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

(B) Alternate I (Dec 2023) of 52.204–30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x) 52.222-26, Equal Opportunity (Sep 2015) (E.O.11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247- 64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

C.5 OPTION TO EXTEND SERVICES 52.217-8 (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 Days.

(End of clause)

C.6 OPTION TO EXTEND THE TERM OF THE CONTRACT 52.217-9 (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years 6 months.

(End of clause)

C.7 AUTHORIZED DEVIATIONS IN CLAUSES. FAR 52.252-6 (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the clause.

(b) The use in this solicitation or contract of any Agriculture Acquisition Regulation (48 CFR 4) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

C.8 MODIFICATION FOR CONTRACT CLOSEOUT. FAR 452.204-70 (DEVIATION JUL 2022)

Upon contract closeout for contracts utilizing Simplified Acquisition Procedures (SAP) according to FAR 13:

(a) If unobligated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (CO) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The CO shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) If unobligated funds of more than \$1000 remain on the contract, the CO shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The CO may also request a Release of Claims be completed by the contractor, although not required for contract and orders using SAP procedures.) If the bilateral modification and Release of Claims are not returned to the CO within 60 days, the CO shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

C.9 DOI-AAAP-0028 DOI ELECTRONIC INVOICING Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the

applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

- Copy of contractor's original 'hard copy' invoice

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

SECTION D – CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 – King Mountain Phase 1 Map, 1 Page

D.2 – Wage Determination 2015-5439 Rev 25, 11 Pages



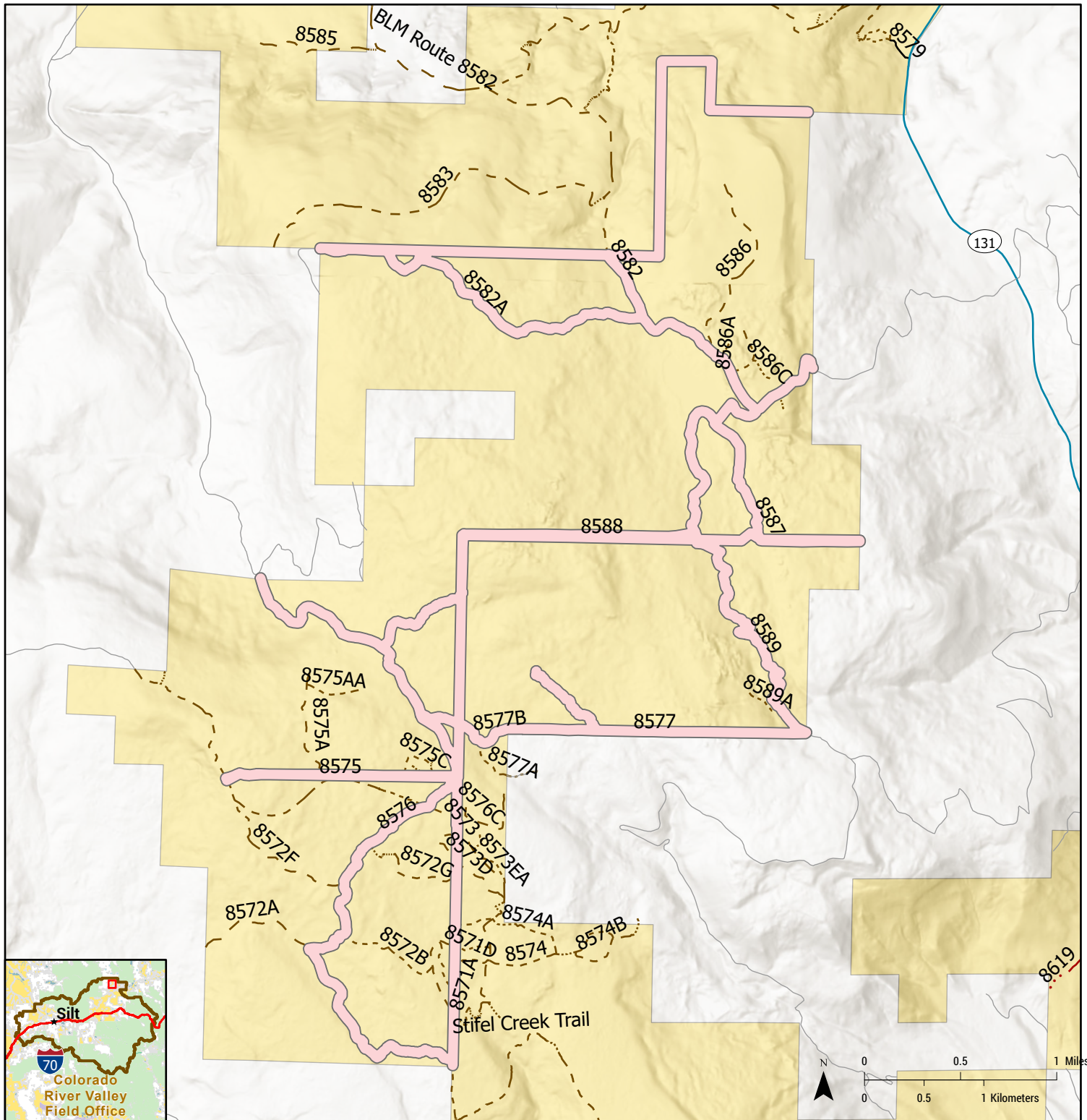
King Mountain Phase 1

861 Acres

Submittal No. 2024-0075

Demo Review and Discussion | DOI-BLM-CO-X000-2024-00XX-XX

Bureau of Land Management
Colorado River Valley Field Office
2300 River Frontage Road
Silt, Colorado 81652
(970) 876-9000



Extent Scale: 1:45,751

- BLM Administrative Unit
- Field Office Boundary
- Colorado Routes
- Interstate
- State Highway
- Private/ Unknown Roads

- All Modes of Transportation
- Motorcycle Shared
- Equestrian and Hiking only
- king_mtn_phase_1

Surface Management

- Bureau of Land Management
- Bureau of Reclamation
- State, County, City, Areas
- National Park Service

- Other Federal
- Private
- State
- US Forest Service
- US Fish and Wildlife Service

Solicitation No. 140L3725Q0075

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor	U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
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Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5439 Revision No.: 25 Date Of Last Revision: 12/23/2024
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Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: Colorado

Area: Colorado Counties of Eagle, Garfield, Lake, Moffat, Pitkin, Rio Blanco, Routt

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		19.77
01012 - Accounting Clerk II		22.18
01013 - Accounting Clerk III		24.81
01020 - Administrative Assistant		29.74
01035 - Court Reporter		21.92
01041 - Customer Service Representative I		15.61***
01042 - Customer Service Representative II		17.03***
01043 - Customer Service Representative III		19.11
01051 - Data Entry Operator I		16.50***
01052 - Data Entry Operator II		18.00
01060 - Dispatcher, Motor Vehicle		22.39
01070 - Document Preparation Clerk		17.46***
01090 - Duplicating Machine Operator		17.46***
01111 - General Clerk I		20.38
01112 - General Clerk II		22.24

01113 - General Clerk III	24.98	Page 17 of 47
01120 - Housing Referral Assistant	24.44	
01141 - Messenger Courier	14.23***	
01191 - Order Clerk I	16.80***	
01192 - Order Clerk II	18.33	
01261 - Personnel Assistant (Employment) I	18.02	
01262 - Personnel Assistant (Employment) II	20.15	
01263 - Personnel Assistant (Employment) III	22.47	
01270 - Production Control Clerk	27.10	
01290 - Rental Clerk	19.80	
01300 - Scheduler, Maintenance	19.60	
01311 - Secretary I	19.60	
01312 - Secretary II	21.92	
01313 - Secretary III	24.44	
01320 - Service Order Dispatcher	20.02	
01410 - Supply Technician	29.74	
01420 - Survey Worker	22.88	
01460 - Switchboard Operator/Receptionist	18.41	
01531 - Travel Clerk I	18.14	
01532 - Travel Clerk II	20.36	
01533 - Travel Clerk III	22.44	
01611 - Word Processor I	17.46***	
01612 - Word Processor II	19.60	
01613 - Word Processor III	21.92	
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass	30.68	
05010 - Automotive Electrician	26.78	
05040 - Automotive Glass Installer	25.08	
05070 - Automotive Worker	25.08	
05110 - Mobile Equipment Servicer	22.03	
05130 - Motor Equipment Metal Mechanic	28.53	
05160 - Motor Equipment Metal Worker	25.08	
05190 - Motor Vehicle Mechanic	28.53	
05220 - Motor Vehicle Mechanic Helper	20.75	
05250 - Motor Vehicle Upholstery Worker	23.35	
05280 - Motor Vehicle Wrecker	25.08	
05310 - Painter, Automotive	26.78	
05340 - Radiator Repair Specialist	25.08	
05370 - Tire Repairer	18.91	
05400 - Transmission Repair Specialist	28.53	
07000 - Food Preparation And Service Occupations		
07010 - Baker	19.64	
07041 - Cook I	19.85	
07042 - Cook II	22.60	
07070 - Dishwasher	15.85***	
07130 - Food Service Worker	18.30	
07210 - Meat Cutter	21.29	
07260 - Waiter/Waitress	15.46***	
09000 - Furniture Maintenance And Repair Occupations		
09010 - Electrostatic Spray Painter	30.59	
09040 - Furniture Handler	20.72	
09080 - Furniture Refinisher	30.59	
09090 - Furniture Refinisher Helper	23.70	
09110 - Furniture Repairer, Minor	26.67	
09130 - Upholsterer	30.59	
11000 - General Services And Support Occupations		
11030 - Cleaner, Vehicles	17.40***	
11060 - Elevator Operator	17.57***	
11090 - Gardener	27.33	
11122 - Housekeeping Aide	17.57***	
11150 - Janitor	17.57***	
11210 - Laborer, Grounds Maintenance	22.17	
11240 - Maid or Houseman	18.49	
11260 - Pruner	20.55	
11270 - Tractor Operator	25.48	

11330 - Trail Maintenance Worker	22.17	Page 18 of 47
11360 - Window Cleaner	18.74	
12000 - Health Occupations		
12010 - Ambulance Driver	21.34	
12011 - Breath Alcohol Technician	27.43	
12012 - Certified Occupational Therapist Assistant	37.64	
12015 - Certified Physical Therapist Assistant	34.96	
12020 - Dental Assistant	23.42	
12025 - Dental Hygienist	50.61	
12030 - EKG Technician	41.58	
12035 - Electroneurodiagnostic Technologist	41.58	
12040 - Emergency Medical Technician	21.34	
12071 - Licensed Practical Nurse I	24.52	
12072 - Licensed Practical Nurse II	27.43	
12073 - Licensed Practical Nurse III	30.59	
12100 - Medical Assistant	22.46	
12130 - Medical Laboratory Technician	30.46	
12160 - Medical Record Clerk	22.65	
12190 - Medical Record Technician	25.32	
12195 - Medical Transcriptionist	24.52	
12210 - Nuclear Medicine Technologist	60.28	
12221 - Nursing Assistant I	14.31***	
12222 - Nursing Assistant II	16.08***	
12223 - Nursing Assistant III	17.55***	
12224 - Nursing Assistant IV	19.71	
12235 - Optical Dispenser	21.30	
12236 - Optical Technician	24.52	
12250 - Pharmacy Technician	22.20	
12280 - Phlebotomist	24.52	
12305 - Radiologic Technologist	42.38	
12311 - Registered Nurse I	25.22	
12312 - Registered Nurse II	30.85	
12313 - Registered Nurse II, Specialist	30.85	
12314 - Registered Nurse III	37.32	
12315 - Registered Nurse III, Anesthetist	37.32	
12316 - Registered Nurse IV	44.74	
12317 - Scheduler (Drug and Alcohol Testing)	33.99	
12320 - Substance Abuse Treatment Counselor	28.53	
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I	25.30	
13012 - Exhibits Specialist II	31.33	
13013 - Exhibits Specialist III	38.34	
13041 - Illustrator I	25.30	
13042 - Illustrator II	31.33	
13043 - Illustrator III	38.34	
13047 - Librarian	34.72	
13050 - Library Aide/Clerk	18.03	
13054 - Library Information Technology Systems Administrator	31.33	
13058 - Library Technician	19.39	
13061 - Media Specialist I	20.42	
13062 - Media Specialist II	23.87	
13063 - Media Specialist III	26.62	
13071 - Photographer I	18.98	
13072 - Photographer II	21.24	
13073 - Photographer III	26.29	
13074 - Photographer IV	32.16	
13075 - Photographer V	38.91	
13090 - Technical Order Library Clerk	22.63	
13110 - Video Teleconference Technician	20.42	
14000 - Information Technology Occupations		
14041 - Computer Operator I	18.46	
14042 - Computer Operator II	20.64	
14043 - Computer Operator III	23.85	
14044 - Computer Operator IV	26.52	

14045 - Solicitation No. 1481372500075		29.38
14071 - Computer Operator V		17.71***
14071 - Computer Programmer I	(see 1)	
14072 - Computer Programmer II	(see 1)	21.95
14073 - Computer Programmer III	(see 1)	26.84
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		18.46
14160 - Personal Computer Support Technician		26.52
14170 - System Support Specialist		32.33
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		35.84
15020 - Aircrew Training Devices Instructor (Rated)		43.38
15030 - Air Crew Training Devices Instructor (Pilot)		51.99
15050 - Computer Based Training Specialist / Instructor		35.84
15060 - Educational Technologist		36.88
15070 - Flight Instructor (Pilot)		51.99
15080 - Graphic Artist		27.81
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		51.99
15086 - Maintenance Test Pilot, Rotary Wing		51.99
15088 - Non-Maintenance Test/Co-Pilot		51.99
15090 - Technical Instructor		25.37
15095 - Technical Instructor/Course Developer		31.03
15110 - Test Proctor		21.37
15120 - Tutor		21.37
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.56
16030 - Counter Attendant		19.56
16040 - Dry Cleaner		22.36
16070 - Finisher, Flatwork, Machine		19.56
16090 - Presser, Hand		19.56
16110 - Presser, Machine, Drycleaning		19.56
16130 - Presser, Machine, Shirts		19.56
16160 - Presser, Machine, Wearing Apparel, Laundry		19.56
16190 - Sewing Machine Operator		23.43
16220 - Tailor		24.38
16250 - Washer, Machine		20.48
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		30.59
19040 - Tool And Die Maker		37.75
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		21.30
21030 - Material Coordinator		27.10
21040 - Material Expediter		27.10
21050 - Material Handling Laborer		19.33
21071 - Order Filler		19.13
21080 - Production Line Worker (Food Processing)		21.30
21110 - Shipping Packer		21.37
21130 - Shipping/Receiving Clerk		21.37
21140 - Store Worker I		17.52***
21150 - Stock Clerk		21.05
21210 - Tools And Parts Attendant		21.30
21410 - Warehouse Specialist		21.30
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		32.25
23019 - Aircraft Logs and Records Technician		24.94
23021 - Aircraft Mechanic I		30.48
23022 - Aircraft Mechanic II		32.25
23023 - Aircraft Mechanic III		33.82
23040 - Aircraft Mechanic Helper		22.05
23050 - Aircraft, Painter		28.61
23060 - Aircraft Servicer		24.94
23070 - Aircraft Survival Flight Equipment Technician		28.61
23080 - Aircraft Worker		26.80

23091 - Solicitation No. 149L272500075 Aircraft Life Support Equipment (ALSE) Mechanic I	26.80	Page 20 of 47
23092 - Aircraft Life Support Equipment (ALSE) Mechanic II	30.48	
23110 - Appliance Mechanic	28.28	
23120 - Bicycle Repairer	19.05	
23125 - Cable Splicer	50.38	
23130 - Carpenter, Maintenance	27.95	
23140 - Carpet Layer	28.65	
23160 - Electrician, Maintenance	29.29	
23181 - Electronics Technician Maintenance I	33.56	
23182 - Electronics Technician Maintenance II	35.82	
23183 - Electronics Technician Maintenance III	38.17	
23260 - Fabric Worker	26.67	
23290 - Fire Alarm System Mechanic	31.23	
23310 - Fire Extinguisher Repairer	25.17	
23311 - Fuel Distribution System Mechanic	37.99	
23312 - Fuel Distribution System Operator	29.19	
23370 - General Maintenance Worker	23.31	
23380 - Ground Support Equipment Mechanic	30.48	
23381 - Ground Support Equipment Servicer	24.94	
23382 - Ground Support Equipment Worker	26.80	
23391 - Gunsmith I	25.17	
23392 - Gunsmith II	28.65	
23393 - Gunsmith III	32.59	
23410 - Heating, Ventilation And Air-Conditioning Mechanic	27.95	
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	29.58	
23430 - Heavy Equipment Mechanic	34.30	
23440 - Heavy Equipment Operator	28.63	
23460 - Instrument Mechanic	32.59	
23465 - Laboratory/Shelter Mechanic	30.59	
23470 - Laborer	19.33	
23510 - Locksmith	30.59	
23530 - Machinery Maintenance Mechanic	39.17	
23550 - Machinist, Maintenance	32.59	
23580 - Maintenance Trades Helper	24.09	
23591 - Metrology Technician I	32.59	
23592 - Metrology Technician II	34.49	
23593 - Metrology Technician III	36.17	
23640 - Millwright	32.59	
23710 - Office Appliance Repairer	27.24	
23760 - Painter, Maintenance	22.18	
23790 - Pipefitter, Maintenance	29.01	
23810 - Plumber, Maintenance	27.23	
23820 - Pneudraulic Systems Mechanic	32.59	
23850 - Rigger	32.59	
23870 - Scale Mechanic	28.65	
23890 - Sheet-Metal Worker, Maintenance	27.39	
23910 - Small Engine Mechanic	22.00	
23931 - Telecommunications Mechanic I	31.80	
23932 - Telecommunications Mechanic II	33.64	
23950 - Telephone Lineman	30.30	
23960 - Welder, Combination, Maintenance	29.13	
23965 - Well Driller	32.59	
23970 - Woodcraft Worker	32.59	
23980 - Woodworker	25.17	
24000 - Personal Needs Occupations		
24550 - Case Manager	21.94	
24570 - Child Care Attendant	18.21	
24580 - Child Care Center Clerk	22.72	
24610 - Chore Aide	17.47***	
24620 - Family Readiness And Support Services Coordinator	21.94	

24630	Solicitation No. 14OL3725Q0075 Homemaker	21.94	Page 21 of 47
25000	- Plant And System Operations Occupations		
25010	- Boiler Tender	38.12	
25040	- Sewage Plant Operator	29.90	
25070	- Stationary Engineer	38.12	
25190	- Ventilation Equipment Tender	26.57	
25210	- Water Treatment Plant Operator	29.90	
27000	- Protective Service Occupations		
27004	- Alarm Monitor	25.89	
27007	- Baggage Inspector	17.78	
27008	- Corrections Officer	29.98	
27010	- Court Security Officer	29.43	
27030	- Detection Dog Handler	19.89	
27040	- Detention Officer	29.98	
27070	- Firefighter	29.12	
27101	- Guard I	17.78	
27102	- Guard II	19.89	
27131	- Police Officer I	31.93	
27132	- Police Officer II	35.49	
28000	- Recreation Occupations		
28041	- Carnival Equipment Operator	21.62	
28042	- Carnival Equipment Repairer	22.96	
28043	- Carnival Worker	17.72***	
28210	- Gate Attendant/Gate Tender	23.45	
28310	- Lifeguard	20.38	
28350	- Park Attendant (Aide)	26.23	
28510	- Recreation Aide/Health Facility Attendant	19.15	
28515	- Recreation Specialist	32.50	
28630	- Sports Official	20.90	
28690	- Swimming Pool Operator	26.14	
29000	- Stevedoring/Longshoremen Occupational Services		
29010	- Blocker And Bracer	28.65	
29020	- Hatch Tender	28.65	
29030	- Line Handler	28.65	
29041	- Stevedore I	26.67	
29042	- Stevedore II	30.59	
30000	- Technical Occupations		
30010	- Air Traffic Control Specialist, Center (HFO) (see 2)	45.21	
30011	- Air Traffic Control Specialist, Station (HFO) (see 2)	31.17	
30012	- Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.34	
30021	- Archeological Technician I	19.79	
30022	- Archeological Technician II	22.14	
30023	- Archeological Technician III	27.43	
30030	- Cartographic Technician	27.43	
30040	- Civil Engineering Technician	30.47	
30051	- Cryogenic Technician I	30.38	
30052	- Cryogenic Technician II	33.56	
30061	- Drafter/CAD Operator I	19.79	
30062	- Drafter/CAD Operator II	22.14	
30063	- Drafter/CAD Operator III	24.68	
30064	- Drafter/CAD Operator IV	30.38	
30081	- Engineering Technician I	17.63***	
30082	- Engineering Technician II	19.79	
30083	- Engineering Technician III	22.14	
30084	- Engineering Technician IV	27.43	
30085	- Engineering Technician V	33.56	
30086	- Engineering Technician VI	40.60	
30090	- Environmental Technician	27.96	
30095	- Evidence Control Specialist	27.43	
30210	- Laboratory Technician	28.74	
30221	- Latent Fingerprint Technician I	30.38	
30222	- Latent Fingerprint Technician II	33.56	
30240	- Mathematical Technician	27.43	
30361	- Paralegal/Legal Assistant I	20.74	
30362	- Paralegal/Legal Assistant II	25.70	

30363 - Solicitation No. 1401372500075 Paralegal/Legal Assistant III	31.44
30364 - Paralegal/Legal Assistant IV	38.03
30375 - Petroleum Supply Specialist	33.56
30390 - Photo-Optics Technician	27.43
30395 - Radiation Control Technician	33.56
30461 - Technical Writer I	27.43
30462 - Technical Writer II	33.56
30463 - Technical Writer III	40.60
30491 - Unexploded Ordnance (UXO) Technician I	28.73
30492 - Unexploded Ordnance (UXO) Technician II	34.76
30493 - Unexploded Ordnance (UXO) Technician III	41.67
30494 - Unexploded (UXO) Safety Escort	28.73
30495 - Unexploded (UXO) Sweep Personnel	28.73
30501 - Weather Forecaster I	30.38
30502 - Weather Forecaster II	36.96
30620 - Weather Observer, Combined Upper Air Or (see 2)	24.68
Surface Programs	
30621 - Weather Observer, Senior (see 2)	27.43
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	34.76
31020 - Bus Aide	19.21
31030 - Bus Driver	24.72
31043 - Driver Courier	21.12
31260 - Parking and Lot Attendant	15.65***
31290 - Shuttle Bus Driver	20.81
31310 - Taxi Driver	17.16***
31361 - Truckdriver, Light	22.89
31362 - Truckdriver, Medium	24.73
31363 - Truckdriver, Heavy	26.21
31364 - Truckdriver, Tractor-Trailer	26.21
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	16.95***
99030 - Cashier	16.29***
99050 - Desk Clerk	18.46
99095 - Embalmer	28.73
99130 - Flight Follower	28.73
99251 - Laboratory Animal Caretaker I	18.34
99252 - Laboratory Animal Caretaker II	19.95
99260 - Marketing Analyst	32.06
99310 - Mortician	28.73
99410 - Pest Controller	28.28
99510 - Photofinishing Worker	15.10***
99710 - Recycling Laborer	26.02
99711 - Recycling Specialist	29.84
99730 - Refuse Collector	24.28
99810 - Sales Clerk	17.57***
99820 - School Crossing Guard	16.93***
99830 - Survey Party Chief	29.32
99831 - Surveying Aide	22.28
99832 - Surveying Technician	27.72
99840 - Vending Machine Attendant	22.43
99841 - Vending Machine Repairer	27.12
99842 - Vending Machine Repairer Helper	22.43

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The

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 minimum wage requirements of Executive Order 14026 also are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.36 per hour, up to 40 hours per week, or \$214.40 per week or \$929.07 per month

HEALTH & WELFARE EO 13706: \$4.93 per hour, up to 40 hours per week, or \$197.20 per week, or \$854.53 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional

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(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made

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 the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

SECTION E - SOLICITATION PROVISIONS**E.1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. FAR 52.252-1 (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The quoter is cautioned that the listed provisions may include blocks that must be completed by the quoter and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the quoter may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) Provisions: <https://www.acquisition.gov/browse/index/far> (FAR Provisions begin with 52)

Department of the Interior Acquisition Regulation (DIAR) Provisions: <https://www.acquisition.gov/diar>.

System for Award Management 52.204-7 (NOV 2024)

Commercial and Government Entity Code Reporting 52.204-16 (AUG 2020)

E.2 INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES 52.212-1 (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Is set aside for small business and has a value above the simplified acquisition threshold;

(2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the [SF 1449](#), letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

(1) The solicitation number;

(2) The time specified in the solicitation for receipt of offers;

(3) The name, address, and telephone number of the offeror;

(4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) [52.212-3](#) (see FAR [52.212-3](#)(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the [SF 1449](#), include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR [subpart 4.10](#)), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2) (i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1) (i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101–29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by—

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571–767–6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier*. (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR [subpart 32.11](#)) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing*. If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

E.3 EVALUATION – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. FAR 52.212-2 (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible quoter whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The Government intends to award based on Lowest Price Technically Acceptable.

Per FAR Part 13.106-2(b) evaluation will be conducting by comparative evaluation of quotes. This solicitation is not stating nor required to state the relative importance assigned to each evaluation factor and/or sub factor (FAR 13.106-1(a)(2)). Award will be made to the vendor with the lowest evaluated price which meets the factors listed below.

FACTOR 1 – RELEVANT PROJECT EXPERIENCE

Provide a list of at least three (3) jobs completed or ongoing, in the past five (5) years in which you acted as a Prime Contractor or Sub-Contractor responsible for providing services identified in the solicitation. Each job description must contain the following information:

- The name of job
- The job start and end dates
- A brief description of services provided and the location/size of the job
- The owner of job
- The owner's Contact information
- The total dollar value of the job

FACTOR 2 – TECHNICAL CAPABILITY

(i) The offeror shall describe their proposed technical approach for the project in narrative form, not to exceed five (5) pages in length. Significant subfactors include the following:

(A) Technical approach narrative must demonstrate the offeror's understanding of the project requirements, the scope of work, and the contract documents. Identify and address the specific needs and unique requirements for the scope, location, and schedule of this project.

(B) Demonstrate understanding of how to organize, staff, and manage the contract, as well as the means and methods that will be used to accomplish the contract requirements.

(C) Demonstrate an understanding of project requirements for safety, sustainability, energy efficiency and risk management.

(D) Provide an approach that displays Offeror's experience in managing the permitting process.

(E) Provide a schedule to show how work described in the SOW will be completed within the Period of Performance.

FACTOR 3 – PRICE

Price will be evaluated in accordance with FAR 13.106-3. Quotes will be reviewed for fair and reasonable pricing. If competitive quotation do not establish price reasonableness, then the other methods outlined in FAR 13.106-3 will be used.

(End of provision)

E.4 COMPLETE THE YELLOW HIGHLIGHTED INFORMATION AND SUBMIT A COPY WITH YOUR QUOTE. SEE INSTRUCTIONS IN SECTION E, PROVISION 52.212-1.

REPRESENTATIONS & CERTIFICATIONS (CONTRACTOR TO COMPLETE AND RETURN WITH OFFER/QUOTE)

VENDOR NAME: _____

VENDOR UEI: _____

E.5 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. FAR 52.204-24 (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications—Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) Representation. The Offeror represents that—

(1) **It ☐ will, ☐ will not** provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has

responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

E.6 OFFEROR REPRESENTATIONS AND CERTIFICATIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. FAR 52.212-3 (MAY 2024) (DEVIATION FEB 2025)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

If Quoter Representations and Certifications are not complete in SAM the quoter shall submit a completed copy of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, with your quote. The full provision is available from <http://www.acquisition.gov/far/>.

If Quoter Representations and Certifications are complete in SAM, the quoter shall complete the following:

The *Offeror shall* complete only paragraph (b) of this provision if the *Offeror* has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the *Offeror* has not completed the annual representations and certifications electronically, the *Offeror shall* complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States* and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not *offer* himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an *immediate owner* of the *offeror*, or that owns or controls one or more entities that control an *immediate owner* of the *offeror*. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the *offeror*, that has direct control of the *offeror*. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an *inverted domestic corporation* under [6 U.S.C. 395\(b\)](#), applied in accordance with the rules and definitions of [6 U.S.C. 395\(c\)](#).

Manufactured end product means any *end product* in product and service codes (PSCs) 1000-9999, except

-
- (1) PSC 5510, Lumber and Related Basic Wood Materials;
 - (2) Product or Service Group (PSG) 87, Agricultural *Supplies*;
 - (3) PSG 88, Live Animals;
 - (4) PSG 89, Subsistence;
 - (5) PSC 9410, Crude Grades of Plant Materials;
 - (6) PSC 9430, Miscellaneous Crude Animal *Products*, Inedible;
 - (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry *Products*;
 - (8) PSC 9610, Ores;
 - (9) PSC 9620, Minerals, Natural and Synthetic; and
 - (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an *end product* is assembled out of *components*, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the *place of manufacture*.

Predecessor means an entity that is replaced by a *successor* and includes any *predecessors* of the *predecessor*.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction

activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174).

Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "*Sensitive technology*"— *Sensitive technology*—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International *Emergency Economic Powers Act* (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a *small business concern*—

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A *small business concern* eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or *successor* system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

- (1) Effective January 1, 2024, is designated in the *System for Award Management (SAM)* as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes *contracting officers* to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

(1) Means a concern, including its *affiliates*, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this *solicitation*.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the *acquisition*, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the *United States*; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another *subsidiary* of a parent corporation

Successor means an entity that has replaced a *predecessor* by acquiring the assets and carrying out the affairs of the *predecessor* under a new name (often through *acquisition* or merger). The term "*successor*" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the *successor* for the liabilities of the *predecessor* may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a *small business concern*—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a *small business concern*—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States*, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) *Annual Representations and Certifications.* Any changes provided by the *Offeror* in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The *offeror* has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the *Offeror* verifies by submission of this *offer* that the representations and certifications currently posted electronically at FAR [52.212-3](#), *Offeror* Representations and Certifications- *Commercial Products* and *Commercial Services*, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this *solicitation* (including the business size standard(s) applicable to the NAICS code(s) referenced for this *solicitation*), at the time this *offer* is submitted and are incorporated in this *offer* by reference (see FAR [4.1201](#)), except for paragraphs ____.

[*Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.*

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) *Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000](#)(b)(1)(ii). Check all that apply.*

(1) *Small business concern.* The *offeror* represents as part of its *offer* that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The *offeror* represents as part of its *offer* that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The *offeror* represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The *offeror* represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The *offeror* represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1001](#).

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The *offeror* represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The *offeror* represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The *offeror* represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this *solicitation* is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)

(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a *HUBZone small business concern* listed, on the date of this representation, as having been certified by SBA as a *HUBZone small business concern* in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of *HUBZone* residents of 35 percent of its employees during performance of a *HUBZone contract* (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a *HUBZone joint venture* that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each *HUBZone small business concern* participating in the *HUBZone joint venture* shall provide representation of its *HUBZone* status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The *Offeror* shall separately list the *line item numbers* of domestic *end products* that contain a critical *component* (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical *component*," "domestic end product," "*end product*," "foreign *end product*," and "*United States*" are defined in the clause of this *solicitation* entitled "Buy American-Supplies."

(2) Foreign *End Products*:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic *end products* containing a critical *component*:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), *Buy American-Free Trade Agreements-Israeli Trade Act*, is included in this *solicitation*.)

(i)

(A) The *Offeror* certifies that each *end product*, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic *end product* listed in paragraph (g)(1)(iv) of this provision contains a critical *component*.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian *end product*," "commercially available off-the-shelf (COTS) item," "critical *component*," "domestic end product," "*end product*," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country *end product*," "Israeli *end product*," and "*United States*" are defined in the clause of this *solicitation* entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The *Offeror* certifies that the following *supplies* are Free Trade Agreement country *end products* (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian *end products*) or Israeli *end products* as defined in the clause of this *solicitation* entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country *End Products* (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian *End Products*) or Israeli *End Products*:

Line Item No.	Country of Origin
_____	_____

 [List as necessary]

(iii) The *Offeror shall* list those *supplies* that are foreign *end products* (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this *solicitation* entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The *Offeror shall* list as other foreign *end products* those end *products* manufactured in the *United States* that do not qualify as domestic *end products*. For those foreign *end products* that do not consist wholly or predominantly of iron or steel or a combination of both, the *Offeror shall* also indicate whether these foreign *end products* exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

<i>Line Item No.</i>	<i>Country of Origin Exceeds 55% domestic content (yes/no)</i>
_____	_____
_____	_____
_____	_____

[List as necessary]

(iv) The *Offeror shall* list the *line item numbers* of domestic end *products* that contain a critical component (see FAR [25.105](#)).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If *Alternate II* to the clause at FAR [52.225-3](#) is included in this *solicitation*, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The *offeror* certifies that the following *supplies* are Israeli *end products* as defined in the clause of this *solicitation* entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III*. If *Alternate III* to the clause at [52.225-3](#) is included in this *solicitation*, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean *end product*”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic *end product*,” “*end product*,” “foreign *end product*,” “Free Trade Agreement country,” “Free Trade Agreement country *end product*,” “Israeli *end product*,” and “United States” are defined in the clause of this *solicitation* entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The *Offeror* certifies that the following *supplies* are Korean *end products* or Israeli *end products* as defined in the clause of this *solicitation* entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean *End Products* or Israeli *End Products*:

<i>Line Item No.</i>	<i>Country of Origin</i>
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this *solicitation*.)

(i) The *offeror* certifies that each *end product*, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country *end product*, as defined in the clause of this *solicitation* entitled "Trade Agreements."

(ii) The *offeror shall* list as other *end products* those *end products* that are not U.S.-made or designated country *end products*.

Other End Products:

<i>Line Item No.</i>	<i>Country of Origin</i>
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate *offers* of U.S.-made or designated country *end products* without regard to the restrictions of the Buy American statute. The Government will consider for award only *offers* of U.S.-made or designated country *end products* unless the *Contracting Officer* determines that there are no *offers* for such *products* or that the *offers* for such *products* are insufficient to fulfill the requirements of the *solicitation*.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the *simplified acquisition threshold*.) The *offeror* certifies, to the best of its knowledge and belief, that the *offeror* and/or any of its principals–

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for *debarment*, or declared *ineligible* for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this *offer*, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of *offers*; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this *offer*, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. *Should* the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. *Should* the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126)*. [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

Listed End Product Listed Countries of Origin

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4\(c\)\(1\)](#). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4\(c\)\(2\)\(ii\)](#)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR [22.1003-4\(d\)\(1\)](#). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4\(d\)\(2\)\(iii\)](#));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a

Service Contract Labor Standards wage determination to the *solicitation*, the *offeror shall* notify the *Contracting Officer* as soon as possible; and

(ii) The *Contracting Officer may* not make an award to the *offeror* if the *offeror* fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the *Contracting Officer* as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the *offeror* is required to provide this information to the SAM to be eligible for award.)

(1) All *offerors must* submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and [3325\(d\)](#), reporting requirements of [26 U.S.C. 6041](#), [6041A](#), and [6050M](#), and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN *may* be used by the Government to collect and report on any delinquent amounts arising out of the *offeror's* relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder *may* be matched with IRS records to verify the accuracy of the *offeror's* TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ *Offeror* is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ *Offeror* is an agency or instrumentality of a foreign government;

☐ *Offeror* is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _____.

(5) *Common parent*.

☐ *Offeror* is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan*. By submission of its *offer*, the *offeror* certifies that the *offeror* does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations*.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a *subsidiary* of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation*. The *Offeror* represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a *subsidiary* of an *inverted domestic corporation*.

(o) Prohibition on *contracting* with entities engaging in certain activities or transactions relating to Iran.

(1) The *offeror shall* e-mail questions concerning *sensitive technology* to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its *offer*, the *offeror*-

(i) Represents, to the best of its knowledge and belief, that the *offeror* does not export any *sensitive technology* to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the *offeror*, or any person owned or controlled by the *offeror*, does not engage in any activities for which sanctions *may* be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the *offeror*, and any person owned or controlled by the *offeror*, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran's Revolutionary Guard Corps or any of its officials, agents, or *affiliates*, the property and interests in property of which are blocked pursuant to the International *Emergency Economic Powers Act* (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This *solicitation* includes a trade agreements certification (e.g., [52.212-3\(g\)](#) or a comparable agency provision); and

(ii) The *offeror* has certified that all the offered *products* to be supplied are designated country *end products*.

(p) *Ownership or Control of Offeror*. (Applies in all *solicitations* when there is a requirement to be registered in SAM or a requirement to have a *unique entity identifier* in the *solicitation*).

(1) The *Offeror* represents that it ☐ has or ☐ does not have an *immediate owner*. If the *Offeror* has more than one *immediate owner* (such as a joint venture), then the *Offeror shall* respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the *Offeror* indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the *immediate owner* owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the *Offeror* indicates "yes" in paragraph (p)(2) of this provision, indicating that the *immediate owner* is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law*.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered *suspension* or *debarment* of the corporation and made a determination that *suspension* or *debarment* is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the *conviction*, unless an agency has considered *suspension* or *debarment* of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The *Offeror* represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror*. (Applies in all *solicitations* that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The *Offeror* represents that it ☐ is or ☐ is not a *successor* to a *predecessor* that held a Federal contract or grant within the last three years.

(2) If the *Offeror* has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all *predecessors* that held a Federal contract or grant within the last three years (if more than one *predecessor*, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) [Reserved].

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its *successor* provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of *classified information*.

(3) *Representation*. By submission of its *offer*, the *Offeror* represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of

(1) The *Offeror shall* review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The *Offeror* represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered *products* or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a *reasonable inquiry* for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

E.7 Evaluation of Options 52.217-5 (JUL 199)

E.8 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of Department of the Interior Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

E.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any *Department of the Interior Regulation* (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

E.10 DIAR 1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION – DEPARTMENT OF THE INTERIOR (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

“The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.”

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)